

26CHCV00755 26CHCV00755

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DEFENDANT CHEDRAUI USA, INC.'S DEMURRER TO COMPLAINT

Motion filed on June 4, 2026.

MOVING PARTY: Defendant Chedraui USA, Inc.

RESPONDING PARTY: Plaintiff Imelda Solorio

NOTICE: OK

RELIEF REQUESTED: Chedraui demurs to the Complaint for defect or misjoinder of parties, failure to state sufficient facts, and uncertainty.

RULING: Demurrer is overruled. Request for judicial notice is denied.

BACKGROUND

On February 23, 2026, Imelda Solorio (Plaintiff) filed the Complaint against Chedraui (Defendant Chedraui) and Bodega Latina Corporation (Defendant Bodega) alleging causes of action for general negligence and premises liability.

On June 4, 2026, Defendant Chedraui filed the instant demurrer, the supporting declaration of Angela J. Dailey, and a Request for Judicial Notice. Plaintiff filed an opposition on August 3, 2026. Defendant Chedraui filed a reply on August 7, 2026.

REQUEST FOR JUDICIAL NOTICE

Defendant Chedraui requests judicial notice of an uncertified printout from the California Secretary of State's business-search website listing Bodega as "Merged Out." California has not recognized a provision for taking judicial notice of documents obtained from official governmental agency websites. (*Jolley v. Chase Home Finance, LLC* (2013) 213 Cal.App.4th 872, 888.) Information appearing on websites may be reasonably subject to dispute. (*Huitt v. Southern California Gas Co.* (2010) 188 Cal.App.4th 1586, 1605, fn. 10.) The printout itself cautions that the information is provided "as is" and is not a complete or certified record. It lists an entity named Bodega Latina Corporation, Entity No. 1756455, as "Merged Out" and provides an initial filing date of January 6, 1995. It does not identify the date of the merger, the merger instrument, or the surviving corporation. (RJN, Ex. 1.) It therefore does not establish Defendant Chedraui's assertion that Bodega merged into Chedraui in 2022.

The request for judicial notice is denied.

LEGAL STANDARD

"[A] demurrer tests the legal sufficiency of the allegations in a complaint." (*Lewis v. Safeway, Inc.* (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (*Aubry v. Tri-City Hosp. Dist.* (1992) 2 Cal.4th 962, 967.)

DISCUSSION

Defect or Misjoinder of Parties

The Complaint alleges that Defendant Bodega and Defendant Chedraui each owned, operated, managed, maintained, leased, occupied, or controlled the premises. (Compl. ¶ 7.) The Complaint does not disclose a merger. Because the request for judicial notice is denied, Defendant Chedraui's assertion that Defendant Bodega merged into Defendant Chedraui depends on extrinsic evidence that cannot be considered on demurrer. Defendant Chedraui therefore has not established a defect or misjoinder of parties.

The demurrer under Code of Civil Procedure section 430.10, subdivision (d), is overruled.

General Negligence and Premises Liability

"The elements of a cause of action for premises liability are the same as those for negligence: duty, breach, causation, and damages." (*Castellon v. U.S. Bancorp* (2013) 220 Cal.App.4th 994, 998.) "Premises liability is grounded in the possession of the premises and the attendant right to control and manage the premises." (*Kesner v. Superior Court* (2016) 1 Cal.5th 1132, 1158, quotation marks omitted.) Negligence and premises liability may be pleaded generally. (*Lopez v. Southern California Rapid Transit District* (1985) 40 Cal.3d 780, 795; *Pultz v. Holgerson* (1986) 184 Cal.App.3d 1110, 1116-1117.)

Here, as to duty, Plaintiff alleges that Defendant Chedraui possessed or controlled the premises and owed invitees a duty of reasonable care. As to breach, Plaintiff alleges that Defendant Chedraui allowed a wet, slippery, uneven, defective, or otherwise unsafe walking surface to exist and failed to inspect, repair, remove, or warn of it. Plaintiff also alleges that

Defendant Chedraui created the condition or had actual or constructive notice of it. As to causation, Plaintiff alleges that the condition caused her to slip and fall. As to damages, Plaintiff alleges bodily injury, emotional distress, medical expenses, pain and suffering, and lost earning capacity. (Compl. ¶¶ 8, 12, 16-23, 25-34.) These allegations satisfy each element.

That negligence and premises liability overlap does not render either cause of action legally insufficient. Defendant Chedraui's challenge to the negligent hiring allegations also does not defeat the independently sufficient theory of negligent inspection and maintenance. A general demurrer does not lie to only part of a cause of action. (PH II, Inc. v. Superior Court (1995) 33 Cal.App.4th 1680, 1682-1683.)

The demurrer to both causes of action is overruled.

Uncertainty

A demurrer for uncertainty is sustained only when the pleading is so incomprehensible that the defendant cannot reasonably determine what issues must be admitted or denied. (Khoury v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 616.)

Here, the Complaint identifies the date and address of the incident, the alleged dangerous condition, Chedraui's alleged failures, the resulting fall, and the claimed injuries. Chedraui can reasonably determine what it must answer.

The demurrer under Code of Civil Procedure section 430.10, subdivision (f), is overruled.

CONCLUSION

The demurrer is overruled. The request for judicial notice is denied. Chedraui shall file and serve its answer within 10 days. Chedraui shall give notice.